

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 26, 2018

The Honorable Bernard J. Schwartz
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: Patrick Czajar
CDC No: V86621
Case No: RIF139319
Date of Sentence: June 27, 2005

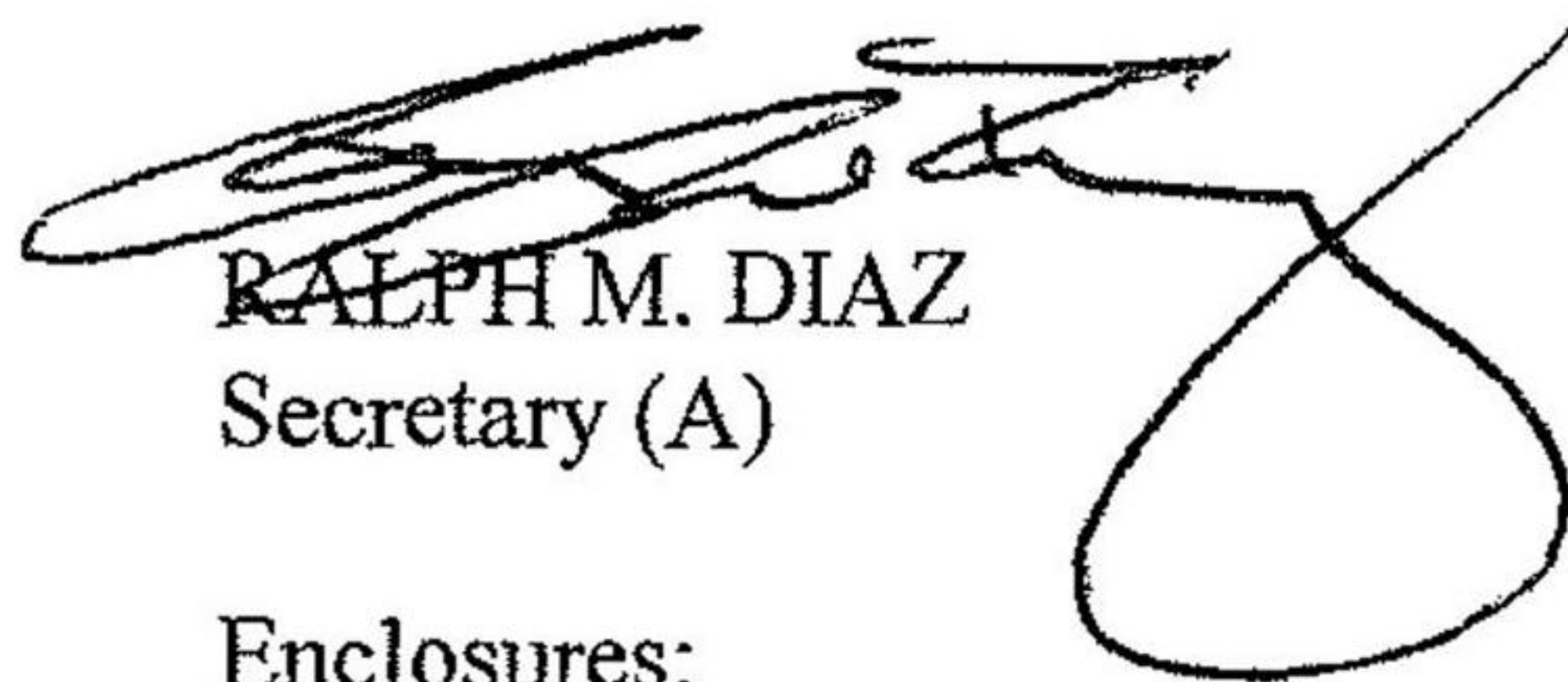
Dear Honorable Bernard J. Schwartz :

The purpose of this letter is to provide the court with authority to resentence Patrick Czajar, pursuant to Penal Code Section 1170, subdivision (d). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Czajar is commended for remaining disciplinary free during his current term. He has completed and passed the California State Exam to become a Certified Drug and Alcohol Counselor and is currently assigned as an Offender Mentor through the 2080 hour Offender Mentor Certification Program. Inmate Czajar's crimes appear to be the result of a drug dependency and a review of his file shows he has taken advantage of various programs to help with his addiction including; Narcotics Anonymous, Substance Abuse Recovery and Re-entry programs. Various staff at the California Correctional Institution including the Investigative Services Unit (ISU), work supervisors and housing unit staff have been interviewed in regards to his current programming and behavior. Staff stated he is considered a role model to other inmates and is very respectful to staff. Staff also noted that inmate Czajar has never been in trouble during his incarceration and he spends most of his time attending classes or mentoring inmates.

Having reviewed the enclosed documentation it appears that inmate Czajar's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced¹.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: W. Samuel Hamrick, Jr., County Court Executive Officer
Riverside County District Attorney's Office
Riverside County Public Defender's Office

¹ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.